

Application for expungement under R.C. 2953.35

Court of Common Pleas, Franklin County, Ohio - General Division, Criminal

State of Ohio v. Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III.  
Case 21CR001234.

The applicant requests expungement of the identified record under R.C. 2953.35, subject to the court's determination of the statutory requirements.

Applicant: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III. Other names: Alexandrina Katherine Montgomery Reyes. Date of birth: 1991-04-17.

Court of Common Pleas, Franklin County, Ohio; General Division, Criminal. Case 21CR001234. Assigned judge: Alex Example (synthetic assigned judge).

Address: 118 Maple Street, Apartment 1204, Rear Entrance, Columbus, Ohio 43215.  
Telephone: 614-555-0142. Email: jordan.reyes@example.org.

Offense: Former R.C. 2923.12(B)(1), failure to promptly notify. Offense date: 2021-01-10; arrest date: 2021-01-10; arresting agency: Columbus Division of Police.

Count 1: Former R.C. 2923.12(B)(1), failure to promptly notify; disposition: Convicted on amended sole count; sentence completed 2022-06-15; date: 2021-06-15.

Conviction date: 2021-06-15. Final discharge: 2022-06-15.

I seek expungement of the specified obsolete notification conviction to reduce employment barriers.

During a law-enforcement stop while carrying a concealed handgun under a valid Ohio concealed handgun license, I failed to promptly notify the officer that I was carrying the handgun. No other prohibited conduct is alleged.

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R.C. 2953.35(A)(3), former 2923.12(B)(1), before June 13, 2022; authorization under 2923.12(E)(2)

Synthetic license and incident report confirm a valid concealed-handgun license and conduct limited to former prompt-notification failure.

License evidence: issuer: Franklin County Sheriff; number: SYNTHETIC-CHL-2019-001234; validFrom: 2019-04-17; validThrough: 2024-04-17; suspendedOrRevoked: No.

One-count felony indictment amended before plea to the specified notification misdemeanor; common pleas court accepted the plea and entered judgment on the amended sole count. No companion count or differently disposed charge exists.

Other convictions: None. Pending criminal proceedings: No. Open warrants: No. Registration history: No. BCI record comparison completed: Yes. All same-incident charges inventoried: Yes.

Unpaid court costs only: Yes; court-cost balance: \$125. Indigency requested: No.

What is your full legal name, and have you used any other names? Answer: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III.

What is your date of birth? Answer: 1991-04-17.

Which Ohio court sentenced you, and in which county? Answer: Court of Common Pleas, Franklin County, Ohio.

What is the case number? Answer: 21CR001234.

Which Revised Code section were you convicted under, and on what date? Answer: Former R.C. 2923.12(B)(1), failure to promptly notify.

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What were you actually accused of doing? Answer: During a law-enforcement stop while carrying a concealed handgun under a valid Ohio concealed handgun license, I failed to promptly notify the officer that I was carrying the handgun. No other prohibited conduct is alleged..

Did you hold a concealed handgun licence at the time? Answer: Yes.

What every charge was that came out of the same incident, and how each one ended. Answer: count: 1; charge: Former R.C. 2923.12(B)(1), failure to promptly notify; disposition: Convicted on amended sole count; sentence completed 2022-06-15; date: 2021-06-15.

Do you need to ask the court to excuse the fifty dollar fee? Answer: No.

WHEREFORE, the applicant requests the relief stated above for the listed case and no other case.

Applicant signature: \_\_\_\_\_

Date: \_\_\_\_\_

Printed name: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

Certificate of service

Court of Common Pleas, Franklin County, Ohio; Case 21CR001234. State of Ohio v.  
Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III.

To be served: Franklin County Prosecuting Attorney, counsel for State of Ohio; confirm actual  
opposing counsel and required recipients.

Documents: the application under R.C.2953.35 and all filed continuations and attachments.

I certify that I served the identified documents on the following actual recipients by the method  
stated below. Complete only after actual service.

Recipient name and service address: \_\_\_\_\_

Additional required recipients: \_\_\_\_\_

Actual service method: \_\_\_\_\_

Actual service date: \_\_\_\_\_

Server signature: \_\_\_\_\_

Server printed name: \_\_\_\_\_

## Local filing instructions

Your destination is Court of Common Pleas, Franklin County, Ohio, General Division, Criminal, determined from the supplied court record. This sample uses Franklin County. If your case was handled elsewhere, obtain that court's current filing instructions and required documents.

Franklin criminal filings use electronic filing. A self-represented filer may bring paper to the clerk for registration/scanning assistance and submission, or mail paper for clerk registration/scanning/filing. Incarcerated self-represented defendants submit paper themselves. Email and fax are not substitutes. Clerk: Franklin County Clerk of Courts, General Division, 345 South High Street, first floor, Columbus, OH 43215.

Original application, continuation and service pages use embedded Arial at 12 points, double spaced. Official Form96-C1 and the BCI form retain the issuer layout. Each submitted PDF is limited to 5 MB, with 25 MB together. Retain both submission receipt and final clerk acceptance; correct rejections and verify accepted timestamp. Proposed orders must be DOCX; no proposed order is required by the adopted packet and none is included.

Serve opposing counsel and unrepresented parties under Local Rule 19 and retain written proof. The included service certificate is unexecuted. Confirm recipient name/address and permitted method, and complete actual method/date/signature only after service. Court statutory notice does not replace this written proof. Self-represented defendants receive paper service.

R.C.2953.35 requires \$50 unless indigent; confirm current clerk payment instructions.

This sample does not request a fee waiver. If you cannot pay the filing fee, obtain the current court indigency affidavit and complete it truthfully before filing. Leave the court's indigency decision blank.

Review and sign the original application and date it personally. It is an original pleading, not an

Local filing instructions

official state form.

Records to obtain and compare

Obtain Certified disposition and the charging document. Ask the clerk for a certified copy of the disposition and of the complaint or indictment. Which former version of the statute applied depends on the date and the charging language.

Check your answer to "Which Revised Code section were you convicted under, and on what date?" against Certified disposition and the charging document, and correct the packet if they disagree.

Obtain BCI criminal history record. Request a criminal history record from BCI to assemble the full docket.

Check your answer to "What every charge was that came out of the same incident, and how each one ended." against BCI criminal history record, and correct the packet if they disagree.

Keep originals and certified dispositions for every charge from the incident. Compare the docket with your BCI record and proof of final discharge, including fines and restitution. Unpaid court costs alone do not delay final discharge. Synthetic fixture facts are not certified documents; obtain actual record evidence before filing.

Obtain the former statutory version, charging language, incident/conduct evidence, license and authorization evidence for the exact former-notification branch. This is not general firearm relief or a firearm-rights restoration packet.

Hearing, objections and post-order instructions

The court decides eligibility and relief. Do not fill judicial findings, prosecutor decisions, hearing dates or court/service certifications.

The court sets a hearing and gives prosecutor notice under R.C.2953.35; follow the actual notice.

Stop for legal assistance: Any firearm conviction that is not the obsolete notification offence. This is not a general firearm expungement.

Stop for legal assistance: Any question about which former version of ORC 2923.16 or ORC 2923.12 applied.

Stop for legal assistance: Any incident that produced more than one charge with different dispositions, which triggers ORC 2953.61.

Stop for legal assistance: Pending criminal proceedings or open warrants.

Stop for legal assistance: Prosecutor objection, and any victim objection where applicable.

Stop for legal assistance: Choosing between sealing and expungement, which is a legal judgment with different waits and different exclusions.

Stop for legal assistance: Immigration exposure.

This is not a general firearm expungement. It is tied to specific old statutory versions and authorization language, and any other firearm conviction is outside it.

Ohio has both sealing and expungement and they are different remedies. Neither remedy means that the record is completely gone from everywhere.

"Eligible offender" no longer exists. SB 288 removed that definition from ORC 2953.31 and with it the numeric cap on how many convictions a person could seal. Do not use the former

Hearing, objections and post-order instructions

numeric conviction cap to decide whether you can apply; the current exclusions and other requirements still apply.

"Sentence" does not include payment of court costs, so unpaid court costs do not delay eligibility.

If relief is granted, retain the signed order and follow its agency distribution directions. The BCI request is a blank post-order transmission companion for the authorized sender, not an application for relief. Do not sign, date, check record-system boxes or certify a judicial order before those events occur.

Do not import R.C.2953.32 limited-retention language as though it were a rule of R.C.2953.35. The exact signed order controls.



# DAVE YOST

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**TO ALL POLICE DEPARTMENTS, SHERIFF'S OFFICES & CLERKS OF COURTS**

**RE: SEALING AND/OR EXPUNGEMENTS**

When submitting court orders for Sealing or Expungement of an arrest, BCI requests this form be completed and attached to the court order to assure accuracy of our records.

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Defendant's Names: \_\_\_\_\_

Date of Birth: \_\_\_\_\_ Social Security Number: \_\_\_\_\_

Arresting Agency: \_\_\_\_\_ Arrest No.: \_\_\_\_\_

Arrest Charge: \_\_\_\_\_ Date of Arrest: \_\_\_\_\_

Felony: \_\_\_\_\_ Misdemeanor: \_\_\_\_\_ ITN: \_\_\_\_\_

DNA Collected: Yes ☐ OR No ☐

Ohio BCI No.: \_\_\_\_\_ FBI No.: \_\_\_\_\_

Common Pleas/Juvenile Court Case No.: \_\_\_\_\_

Municipal Court Case No.: \_\_\_\_\_

Conviction ☐ Dismissal ☐ Juvenile ☐

Conviction Charge: \_\_\_\_\_

Final Disposition of Conviction/Adjudication: \_\_\_\_\_

Send by Fax to the Attention of: **Identification Section**

Or by email to: **[Expungement.Submissions@ohioattorneygeneral.gov](mailto:Expungement.Submissions@ohioattorneygeneral.gov)**